

25CV02153 Belladiem Bookin v. Eric Torbet, et al

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-07-08

Motion: Defendant Eric Torbet's Motion to Compel Further Discovery Responses

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Tentative Ruling: Belladiem Bookin v. Eric Torbet, et al

Case Number

25CV02153

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 07/08/2026 - 10:00

Nature of Proceedings

Defendant Eric Torbet's Motion to Compel Further Discovery Responses

Tentative Ruling

For Plaintiff Belladiem Bookin, by and through her guardian ad litem Ann Marie Plane: Timothy C. Hale, Nye, Stirling, Hale, Miller & Sweet, LLP

For Defendant Eric Torbet: Hugo Torbet

For Defendants Edward Bookin and the Estate of Mrika Bookin: John C. Eck, Griffith & Thornburgh, LLP

RULING

For all reasons stated herein, Defendant Eric Torbet's motion to compel further discovery responses is granted in part and denied in part as follows:

The motion to compel further responses to Requests for Admissions, Set Two, request Nos. 23, 25, 26, 27, 28, 29, 30, 31, 32, and 33 is granted. Plaintiff shall serve further code-compliant responses, without objections, no later than July 22, 2026.

The motion to compel further responses to Form Interrogatory 17.1, as it pertains to requests for admissions Nos. 22, 23, 25, 26, 27, 28, 29, 30, 31, 32, and 33, is granted in part and denied in part as follows:

As it pertains to request for admission No. 22, the objections are overruled, and the motion is granted as to part (c). The motion is otherwise denied with respect to request for admission No. 22. Plaintiff shall serve a further code-compliant response, without objections, no later than July 22, 2026.

As it pertains to requests for admission Nos. 23, 25, 26, 27, 29, 30, 31, 32, and 33, the objections are overruled. The motion is otherwise denied with respect to these requests for admission.

As it pertains to request for admission No. 28, the motion is granted as discussed herein. Plaintiff shall serve a further code-compliant response, without objections, no later than July 22, 2026.

The motion to compel further responses to Special Interrogatories Nos. 6, 7, 10, 11, 14, 15, 17, 18, 19, 20, 23, and 24 is denied. However, the objections are overruled.

The motion to compel further responses to Special Interrogatories Nos. 21, 22, 29, and 30 is granted. Plaintiff shall serve further code-compliant responses, without objections, no later than July 22, 2026.

The motion to compel further responses to Requests for Production of Documents, Set Two, Nos. 21 and 22, is granted in part and denied in part as follows:

Plaintiff shall produce all responsive documents request No. 21, if she has not already done so, no later than July 22, 2026.

The motion is denied as to request No. 22.

Attorney Hugo Torbet is again ordered to cease his personal attacks against Plaintiff's attorney and Plaintiff. He is to comport himself in a Courteous and professional manner. Any further violation of the rules of civility may result in the Court setting an order to show cause re personal sanctions or contempt.

The Court confirms; (1) the 10/14/26 Pretrial Conference at 11:30 am; jury comes over 10/15/26 at 9am followed by the first witness; (2) the MSC 9/18/26 at 8:30 am in #3 via Zoom; (3) the final CMC 9/2/26 at 8:30 to discuss any final discovery issues.

Background

On April 9, 2025, Plaintiff Belladiem Bookin (Plaintiff), by and through her conservator Ann Marie Plane (Plane), filed a complaint against Defendants Eric Torbet (Torbet), Edward Bookin (Edward), and the Estate of Marika Bookin (Marika) (collectively, Defendants).

On April 28, 2025, the Court issued an order permitting an amendment to the complaint to state that Plaintiff brings this action by and through Plane as her guardian ad litem (rather than through Plane as Plaintiff's conservator).

On December 3, 2025, Plaintiff filed her operative first amended complaint (FAC) alleging six causes of action: (1) childhood sexual abuse – Code of Civil Procedure section 340.1, subdivision (a)(1) (against Torbet only); (2) sexual battery – Civil Code section 1708.5 (against Torbet only); (3) intentional infliction of emotional distress (IIED) (against Torbet only); (4) negligence (against all Defendants); (5) assault (against Edward only); and (6) battery (against Edward only).

As alleged in the FAC:

Edward and Marika are Plaintiff's adoptive parents. (FAC, ¶ 1.) Torbet was an adult friend of Edward and Marika from the late 2000s and continuing for much of the 2010s. (FAC, ¶ 2.) Plaintiff was allegedly groomed by Torbet and repeatedly subjected to childhood sexual assault while in the custody of Torbet, during times when Edward and Marika allowed Plaintiff to be alone with Torbet. (FAC, ¶¶ 1, 9, 11-17.) The abuse stopped before Plaintiff's eighth grade year. (FAC, ¶ 18.) On January 9, 2025, Plaintiff made a police report to the Santa Barbara Sheriff's Department about the alleged childhood sexual abuse by Torbet. (FAC, ¶ 19.)

When Plaintiff was in the seventh grade, Plaintiff tried to defend Marika against an attack by Edward, who then struck Plaintiff in the face with a closed fist. (FAC, ¶ 44.) On other occasions, Edward struck Plaintiff with an open hand. (Ibid.)

On January 26, 2026, Defendant Edward answered the FAC with a general denial and 14 affirmative defenses.

On April 3, 2026, Torbet filed a Judicial Council Form General Denial and affirmative defenses.

On June 12, 2026, Marika answered the FAC with a general denial and 14 affirmative defenses.

On February 23, 2026, Torbet served: (1) Requests for Admissions, Set Two (RFAs); (2) Form Interrogatory No. 17.1 (FIs); (3) Special Interrogatories, Set Two (SIs); and (4) Demand for Inspection of Documents, Set Two (RFPDs). (Torbet decl., ¶ 2.)

On March 30, 2026, Plaintiff served responses via email. (Torbet decl., ¶ 3.)

Deeming Plaintiff's discovery responses insufficient, and following meet and confer efforts, on April 21, 2026, Torbet filed the present motion to compel further responses to:

RFAs Nos. 23, 25, 26, 27, 28, 29, 30, 31, 32, and 33.

FI No. 17.1, concerning the responses to RFA Nos. 22, 23, 25, 26, 27, 28, 29, 30, 31, 32, and 33.

SIs Nos. 6, 7, 10, 11, 14, 15, 17, 18, 19, 20, 21, 22, 23, 24, 29, and 30.

RFPDs Nos. 21 and 22.

Plaintiff opposes the motion.

Analysis

Torbet combines three separate motions into a single omnibus motion that conflates multiple discovery categories. The motions are:

Motion to Compel Further Responses to Requests for Admissions, Set Two, pursuant to Code of Civil Procedure, section 2033.290; Motion to Compel Further Responses to Form Interrogatories, Set Two, and Special Interrogatories, Set Two, pursuant to Code of Civil Procedure, section 2030.300; and Motion to Compel Further Responses to Demand for Production of Documents, Set Two, pursuant to Code of Civil Procedure, section 2031.310.

Each Code section independently sets forth the requirements for bringing that specific motion, including the obligation to file a notice of motion and a separate statement identifying each disputed request and response. Because each statute creates a distinct procedural vehicle, each motion is treated as a separate filing subject to its own filing fee.

While the Court could summarily deny the omnibus motion or continue the motion until such time as three separate filing fees are paid, the Court will exercise its discretion and rule on the substance of the motions. Counsel for all parties are advised that any future discovery motions are to be separately filed.

Discovery

“Civil discovery is intended to operate with a minimum of judicial intervention. “ ‘[I]t is a ‘ “central precept” ’ of the Civil Discovery Act . . . that discovery ‘ “be essentially self-executing[.]” ’ ” [Citations.]” (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390.)

“Unless otherwise limited by order of the Court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

“A trial Court must be mindful of the Legislature’s preference for discovery over trial by surprise, [and] must construe the facts before it liberally in favor of discovery. . . .” (Williams v. Superior Court (2017) 3 Cal.5th 531, 540.)

Emailed Discovery Responses

Torbet argues that all of the discovery responses are insufficient because they were all electronic copies served by email rather than originals as required by the applicable sections of the Code of Civil Procedure.

Plaintiff argues that the originals are all electronic, and were served via email as allowed by Code, and there were never any original hard copies of the responses. As such, Plaintiff asserts that the originals were served.

There is no appellate authority cited, nor is the Court aware of any, that defines what constitutes an “original” for purposes of the discovery statutes. However: “When a document may be served by mail, express mail, overnight delivery, or fax

transmission, the document may be served electronically under Code of Civil Procedure section 1010.6, Penal Code section 690.5, and the rules in this chapter.” (Cal. Rules of Court, rule 2.251(a).) “A document that is filed electronically shall have the same legal effect as an original paper document.” (Code Civ. Proc., § 1010.6.)

While the discovery responses were served on Torbet, rather than filed with the Court, the same implication should be made. The electronically served documents are for all purposes considered to be “originals.”

Further, Torbet’s counsel filed a Consent to Electronic Service and Notice of Electronic Service Address on January 21, 2026.

The emailed discovery responses will properly be considered to constitute originals.

Verification

The discovery responses were verified by Plaintiff, who is bringing this action by and through her guardian ad litem Plane. Torbet argues that Plaintiff, because she is represented by a guardian ad litem, is not permitted to verify the discovery responses, and that they must be verified by her guardian ad litem, Plane.

Torbet cites *Regency Health Services, Inc. v. Superior Court* (1998) 64 Cal.App.4th 1496 (Regency) in support of his argument that the discovery responses are required to be verified by Plane.

In opposition, Plaintiff argues that Regency does not apply because in that case the lawyer for an incompetent Plaintiff argued that the Plaintiff had no obligation to verify discovery responses, and that the guardian ad litem was not obligated to verify the responses, while in the present case Plaintiff is not incompetent and she is not refusing to verify the discovery responses.

Regency is inapplicable to the present matter. In that case, the Plaintiff was attempting to completely avoid responding to discovery, which would result in severe prejudice to the Defendant, by claiming that Plaintiff was incompetent. Here, despite Torbet’s repeated statements to the contrary, although a guardian ad litem was appointed for Plaintiff, it was not because she was found incompetent. The granting of a conservatorship does not imply that the conservatee is incompetent without specific findings. (see *Board of Regents v. Davis* (1975) 14 Cal.3d 33; *Conservatorship of Moore* (1986) 185 Cal.App.3d 718.) A guardian ad litem was appointed for Plaintiff, pursuant to Code of Civil Procedure section 372, because a conservator was appointed for Plaintiff in Case No. 24PR00514. Further, Regency simply states that a guardian ad litem “has the authority” to verify discovery responses. (Id. at pp. 1504-1505.) It does not say that it is mandatory for a guardian ad litem to verify discovery responses when the ward is competent and willing to verify them herself.

Here, there is no indication that Plaintiff is incapable of verifying her own discovery responses, and there is no authority preventing her from doing so.

Requests for Admissions

“Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties.” (Code Civ. Proc., § 2033.010, *italics added*.)

"The party to whom requests for admission have been directed shall respond in writing under oath separately to each request. Each response shall answer the substance of the requested admission, or set forth an objection to the particular request." (Code Civ. Proc. § 2033.210, subs. (a-b).

"(a) Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits.

(b) Each answer shall:

(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.

(2) Deny so much of the matter involved in the request as is untrue.

(3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.

(c) If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." (Code Civ. Proc., § 2033.220.)

RFAs "differ fundamentally from other forms of discovery. Rather than seeking to uncover information, they seek to eliminate the need for proof." (Murillo v. Superior Court (2006) 143 Cal.App.4th 730, 735.)

The requests in dispute, responses, and the Court's analysis of each response are as follows:

RFA No. 23: "Eric Torbet never kissed you."

Response: "Objection. This request is premature as discovery in this matter has just begun and the pleadings remain unresolved. Plaintiff has not been able to access complete sets of her medical or education records. Subject to and without waiving these objections, Responding Party responds as follows: Admit that Plaintiff does not recall Torbet kissing her, but Plaintiff reserves the right to amend this response if additional detail is recalled."

The response is evasive and does not directly address the substance of the request. The response neither admits nor denies that Torbet never kissed Plaintiff. Rather, the request seems to suggest that Plaintiff lacks sufficient information or knowledge to either admit or deny the request. If this is the case, Plaintiff is required to so state and to "state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable [Plaintiff] to admit the matter," as required by Code of Civil Procedure section 2033.220, subs. (b)(3) and (c). Further, "premature" is not a recognized proper objection to a discovery request.

Plaintiff's objection is overruled and she will be ordered to provide a verified code-compliant further response to the RFA.

RFA Nos. 25, 26, 27, 28, 29, 30, 31, 32, and 33 are all similar in simplicity and purpose to RFA No. 23, and the responses to each of the RFAs are similarly evasive and non-code compliant. The motion to compel further responses to those RFAs will be granted for the same reasons.

Interrogatories

Code of Civil Procedure, section 2030.010 provides, "(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by propounding to any other party to the action written interrogatories to be answered under oath. (b) An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact, or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial."

A party shall respond to interrogatories, in writing and under oath, by (1) providing an answer containing the information sought, (2) exercising the option to produce writings, or (3) by objecting to the particular interrogatory. (Code Civ. Proc., section 2030.210 subd. (a).)

Code of Civil Procedure section 2030.220 provides that, "(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party."

As noted above, Torbet seeks further responses to FI No. 17.1, concerning the responses to RFA Nos. 22, 23, 25, 26, 27, 28, 29, 30, 31, 32, and 33, as well as SIs Nos. 6, 7, 10, 11, 14, 15, 17, 18, 19, 20, 21, 22, 23, and 24.

FI No. 17.1 asks:

"Is your response to each request for admission served with these interrogatories an unqualified admission? If not, for each response that is not an unqualified admission:

(a) state the number of the request;

(b) state all facts upon which you base your response;

(c) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and

(d) identify all DOCUMENTS and other tangible things that support your response and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT or thing."

According to Torbet's separate statement, in response to FI No. 17.1, pertaining to the response to RFA No. 22, Plaintiff states:

"Plaintiff incorporates by reference her objections to each Request for Admission in her responses thereto, and reserves her right to amend these responses in the event additional evidence is discovered or recalled.

...

(a) 22. Deny.

Related Response:

REQUEST FOR ADMISSION NO. 22:

You were never emotionally dependent upon Eric Torbet.

RESPONSE TO REQUEST FOR ADMISSION NO. 22:

Deny.

(b) When Plaintiff was approximately five years old her mother walked in to find Torbet lying on top of the little girl on the floor, stroking her hair and telling her she was beautiful. Defendant Torbet groomed Plaintiff for abuse by giving her copious amounts of attention, telling her she was beautiful, playing with her, and behaving affectionately toward her in a way that made her feel uniquely adored. Torbet's grooming created an emotional dependency in Plaintiff on Torbet that he then exploited for his own sexual gratification. Torbet's sexual abuse of Plaintiff continued when Plaintiff's family moved to a new, larger house in Goleta. Sometimes it occurred in the basement, and other times in Plaintiff's bedroom where Defendant Parents continued to allow Torbet to be alone with Plaintiff with the door closed. Initially Torbet used the girl's dolls to exploit her sexually, simulating the dolls engaging in sex acts while describing such acts in detail to the young 3rd grader who had never heard such talk, and telling her it was a natural thing. As he normalized his abuse, he began to induce her to simulate the sexual acts with the dolls while he made moaning sounds, first with kissing, then digital penetration, then oral copulation and intercourse. Id. He also induced physical contact with him, sometimes with his hand and her vagina by having her do yoga or dancing poses with him, or by giving her piggyback rides, or by having her sit on his lap and moving her back and forth across his genitals while he was sexually aroused and inducing her to kiss his cheek.

This type of behavior continued every time he came over, and at least once a week, until she began to lose interest in dolls around 5th grade, leading him to switch to imaginary sexual acts, referring to her by a different name, showing her how to do things such as put hickies on his arm, or playing games in which he would slide his hand up her thighs. Torbet also created something he called 'sex camp' so that Plaintiff and one of her friends would know how to please boys on whom they had crushes. Torbet then created a simulated boy out of a cardboard box and induced the young girls to simulate sex acts with it and to French kiss each other. He also induced them to simulate various sexual positions with the cardboard boy and each other, including the missionary position, and had them practice performing oral sex on a felt marker, while telling them to be sure to swallow. At other times he would tell her to pretend she was his student, and would spank her for purportedly getting in trouble.

Beginning around 3rd or 4th grade Defendant Parents also allowed Torbet to take Plaintiff to his apartment for hours at a time -- sometimes for entire afternoons into the evening -- where the sexual abuse would continue. They would sit together on his couch or his bed so that his body was touching hers, sometimes putting his arm around her. He would show her movies with sex scenes such as 'Titanic,' and he would talk about the characters having sex. He continued to talk about sex in very graphic terms, and occasionally told her he considered asking women out, only to then say 'but why would I when I have you?' It was rare for him to discuss something with her that was not of a sexual nature. He also sometimes gave the young girl drinks, and she sometimes fell asleep at his home and felt 'fuzzy' when she left.

(c) Plaintiff, her deceased mother, Defendant Torbet, and bookin. Also at least one of Plaintiff's friends was subjected to abuse by Torbet and witnessed abuse by Torbet. Elaina Coupus and her daughter Sydney also may have knowledge of Torbet's criminal conduct, as may Lizbeth Savage, Mia White, and Mia's daughter, Sydney. Contact information for Lizbeth Savage is 5628 Berkeley Rd, Goleta, CA 93117, (805) 453-0571. Contact information for the remaining witnesses is currently unknown to Plaintiff.

(d) Plaintiff is aware of no such documents.”

First, Plaintiff’s objections are without merit and are overruled.

Torbet argues that part (b) of the response is evasive because Plaintiff ignored the question posed and instead only responded with an excerpt of her complaint that is not responsive to the request. No further argument or explanation is given as to why Torbet believes that the response to part (b) is non-compliant. It appears to the Court that the response adequately explains Plaintiff’s factual position regarding why she claims to have been emotionally dependent on Torbet. As such, the motion to compel a further response will be denied as to part (b).

Torbet also argues that part (c) of the response is incomplete. Torbet does not specify how the response is incomplete. Facially, the response may be somewhat incomplete to the extent Plaintiff identifies “one of Plaintiff’s friends.” Plaintiff does not appear to provide the name, address, or telephone number of the “friend.” Plaintiff will be ordered to provide a further response that is clear and complete.

According to Torbet’s separate statement, in response to FI No. 17.1, pertaining to the response to RFA No. 23, Plaintiff states:

“RESPONSE TO REQUEST FOR ADMISSION NO. 23:

“Objection. This request is premature as discovery in this matter has just begun and the pleadings remain unresolved. Plaintiff has not been able to access complete sets of her medical or education records. Subject to and without waiving these objections, Responding Party responds as follows: Admit that Plaintiff does not recall Torbet kissing her, but Plaintiff reserves the right to amend this response if additional detail is recalled.

(b) Plaintiff does not recall Torbet kissing her, but it was something Torbet described to her, and Plaintiff reserves the right to amend this response if additional detail is recalled. Torbet sometimes gave the young girl drinks when she was alone with him in his home, and she sometimes fell asleep after drinking them and felt ‘fuzzy’ when she left.

(c) Plaintiff and Defendant Torbet.

(d) Plaintiff is aware of no such documents.

First, Plaintiff’s objections are without merit and are overruled.

Torbet argues that part (b) of the response is evasive, and that by stating that she “does not recall” something Plaintiff must directly state that she does not have personal knowledge. Torbet provides no authority for this assertion. If Plaintiff is claiming that part (b) represents all of the facts that support her response to RFA No. 23, neither Torbet nor the Court can compel Plaintiff to come up with additional facts that support the response.

Other than the objections being overruled, Plaintiff will not be ordered to provide a further response to FI No. 17.1 as it pertains to RFA No. 23.

FI No. 17.1, as it pertains to RFA Nos. 25, 26, 27, 29, 30, 31, 32, and 33 are all substantively similar to the responses to FI No. 17.1 as it pertains to RFA No. 23. Torbet makes the same argument regarding the responses, and the argument fails for

the same reason. As such, other than the objections being overruled, Plaintiff will not be ordered to provide a further response to FI No. 17.1 as it pertains to RFA Nos. 25, 26, 27, 29, 30, 31, 32, and 33.

FI No. 17.1, as it pertains to RFA No. 28, is somewhat similar to the responses to FI No. 17.1 as it pertains to RFA Nos. 23, 25, 26, 27, 29, 30, 31, 32, and 33. However, there is one difference which mandates a different ruling. RFA No. 28 asks Plaintiff to admit: "You and Eric Torbet never had sexual intercourse." By way of her response to FI No. 17.1, Plaintiff changes "sexual intercourse" to "rape." This is improper. Plaintiff will be ordered to provide a further response that removes the word "rape" and address the interrogatory as it is phrased. Also, as with the responses discussed above, the objections are overruled.

Special Interrogatories

While it is not a subject of the current motion to compel, FI No. 6.2 is pertinent to most of the SI's at issue. In response to previously served FI No. 6.2. which requires Plaintiff to: "Identify each injury you attribute to the INCIDENT and the area of your body affected," Plaintiff responded:

"Objection. This request is premature. Discovery in this matter has just begun. Plaintiff has not been able to access complete sets of her medical or education records and has not been able to consult with expert witnesses. The term incident in this context is vague and ambiguous as there were countless instances of abuse over a period of years. Plaintiff reserves the right to supplement this response.

Subject to and without waiving these objections, Plaintiff responds as follows: The abuse by Defendant Torbet began when Plaintiff was very young, approximately 5 years old, an age at which children have little if any sexual awareness. Torbet's abuse accelerated and distorted the child's psycho-sexual development to such an extent there will undoubtedly be long-term harm to her ability to engage in and enjoy normal, healthy, intimate relationships. Plaintiff is only 19, an age at which most young people are still exploring and defining themselves with regards to sexual intimacy. Torbet's abuse began to alter her development immediately as he inundated the little girl with constant inappropriate sexual talk on subjects of which children Plaintiff's age have no understanding or concept. By the time she reached 7th grade she recalls feeling far

more advanced in her sexual development than her peers. And like many exploited children, consistent with the objectification Torbet subjected her to, she felt people

would only like her and want to be with her if she did sexual things. Already at that young age and as a result of the abuse she had developed a mindset focused on pleasing a partner with no regard for her own needs, and feared that if she didn't any partner would lose interest and leave her. Because of these feelings and this focus on her partner, she has never enjoyed sexual intimacy. Her feeling of being

valued only for sex, as an object, has hypersexualized her behavior for fear of losing relationships if she did not. The long-term consequences of this mindset are dire with regard to Plaintiff's ability to engage in normal, healthy intimate relationships. Additionally, she has flashed back to Torbet even while with a trusted partner.

In addition to these psycho-sexual injuries, Plaintiff has suffered a number of other psychological injuries from the abuse. For instance, Plaintiff has struggled with sleep issues since the abuse, and now must take sleep medications in order to sleep. Before she began taking the medication she was waking up almost every night with nightmares about her father directing violence at her, or Torbet sexually abusing her in his room and telling her not to tell anyone, sometimes while her parents watched. The nightmares began around the time the abuse ended, and grew progressively worse, from once a month to almost every day at their worst. Plaintiff remains fearful of falling asleep because she knows the nightmares may come.

Plaintiff also has been hypervigilant since the abuse, cannot sleep with silence as the slightest sound will wake her, and often falls asleep with her ear buds in and providing background noise. She is particularly triggered by older men, especially if they

look like Torbet. She also always needs to know where the exits are, how she'll get out of or escape from any location she is visiting. Plaintiff always thinks through worst-case scenarios wherever she is and how she will escape them.

Plaintiff has experienced depression since junior high if not earlier, and sometimes struggles to get out of bed. Plaintiff began engaging in self-harm around 7th grade, sometimes cutting herself with razors. Triggers for the self-harm can be things such as seeing someone who looks like her father or Torbet, leading to her shutting down, and feeling like she must do something extreme just to feel anything. She also has picked at her fingers obsessively, and would sometimes pick her fingers until they bled, without even realizing it, while in Torbet's car. Plaintiff also began to have suicidal thoughts in 7th grade with the feeling that nowhere was safe. On multiple occasions while in junior high she tried to overdose on Tylenol and Advil, passing out and then throwing up.

Since the abuse Plaintiff also has struggled to trust anyone. She always has her walls up and is used to only having to trust herself. When she does let her guard down, the slightest perceived betrayal makes it impossible for her to trust. As a result, her circle of friends is very small, and the number of people she actually feels comfortable enough to open up to is even smaller. The trust issues are especially strong with authority figures. She doesn't trust her teachers, has a hard time trusting even adults who are in her life to help her, and rarely opens up to any adults for fear it will make her vulnerable. Trust issues permeate all of her relationships since the abuse.

Plaintiff has been diagnosed with chronic PTSD, and began experiencing anxiety and panic attacks during the period of abuse, around the time she was in 4th grade. They grew progressively worse over the years, from once a month, to once a week, to sometimes repeatedly during the week. Sometimes they are triggered by older men who look like Torbet or her father, and especially if they are in an authority position. When the attack strikes she experiences a racing heart, shakes, has trouble breathing, tears up, and picks at her fingers or bounces her leg to calm herself. She continues to experience anxiety on a regular basis, and has anti-anxiety medications when the anxiety elevates. Plaintiff also has experienced an eating disorder that tends to track with her anxiety issues. She also engages in compulsive behavior. She feels ashamed and dirty when she thinks about the abuse by Torbet, and showers compulsively when that happens, as many as 3-4 times in one day.

Plaintiff still feels a great deal of shame over the abuse, feels she should have paid more attention to her feelings of discomfort, and feels dirty that she was so small and was touched by a man. She fears there was more invasive abuse that she has been unable to recall, and often dwells on it. She feels tremendous guilt over feeling she wanted his paternal affection, even though she now understands that was the result of him grooming her to create an emotional dependency in her on him so that she would be more vulnerable and susceptible to abuse. All of these feelings have fractured her self-esteem and self-confidence.

Finally, Plaintiff has experienced anger issues as a result of the abuse, particularly in the years immediately following the abuse ending.

Discovery and investigation are continuing."

Again, the above lengthy response, to FI No. 6.2 is not at issue in the current motion other than for the fact that the response is important in understanding most of the SIs at issue. It is set forth solely for the purpose of clarity.

SI No. 6 requires: "If you did not personally write your response to Form Interrogatory 6.2, under your verification dated: December 15, 2025, for each person you identify in your response to Interrogatory No. 5, propounded immediately preceding, identify the specific contributions each made to the final draft of your response."

Plaintiff responded to SI No. 6: "Objection. This request is vague, ambiguous, compound, and unintelligible, and calls for information protected by the attorney work product doctrine, the attorney client privilege, the common interest doctrine, and Evidence Code sections 912(d) and 952."

Torbet's attorney argues that the response is inadequate because:

"First, the answer provided, on its face, was not drafted by [an] uneducated nineteen year-old with mental defects of an undisclosed nature. Obviously, it was drafted by someone, or by a group of people, with specialized knowledge of the subject, and who almost certainly plagiarized, directly or indirectly, significant portions of the report from the leading paper on the subject, which is Finkelhor & Browne, Traumatic Impact of Child Sex Abuse: A Conceptualization, American Journal of Orthopsychiatry (1985). Thus, it is fair to enquire what portion of the report of the incompetent person's alleged mental injuries was supplied by the incompetent person, and what portion of the report was supplied by Mr. Hale and his confederates, such as the incompetent person's handler, Ms. Plane, who herself is a psychology professional."

A motion to compel further responses to interrogatories "shall set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).)

Torbet has failed to set forth specific facts showing good cause justifying the discovery sought. It is not clear why Torbet believes the information is in any way relevant to his defense and, additionally, requiring Plaintiff to identify individuals that were interviewed for the purpose of responding to the interrogatory would violate the attorney work product doctrine. As Torbet has also argued, Plaintiff is required to gather information from all available sources. As such, the motion to compel a further response to SI No. 6 will be denied.

SI No. 7 requires: "To follow-up on your response to Form Interrogatory No. 6.2, under your verification dated: December 15, 2025, if you contend that 'grooming' as you have used the word, is illegal, identify every statute and published case decision upon which you rely for your contention."

Plaintiff responded: "Objection. This request is vague, ambiguous, unintelligible, an incomplete hypothetical, misstates the response, assumes facts, is compound, and calls for expert testimony before experts have been designated. The response to 6.2 does not describe any specific grooming behavior by Torbet. It states 'She feels tremendous guilt over feeling she wanted his paternal affection, even though she now understands that was the result of him grooming her to create an emotional dependency in her on him so that she would be more vulnerable and susceptible to abuse'."

Torbet argues: "Here, Mr. Hale failed to respond to the question, and instead answered a different question, presumably one he preferred."

Again, Torbet fails to set forth specific facts showing good cause justifying the discovery sought. It is not clear why Torbet believes the information is in any way relevant to his defense. Further, the interrogatory mistakenly assumes that the response to FI No. 6.2 contends that grooming is illegal. The response makes no such claim. As such, the motion to compel a further response to SI No. 7 will be denied.

SI No. 10 requires: "To follow-up on your response to Form Interrogatory No. 6.2, under your verification dated: December 15, 2025, explain how it is 'undoubtable' that because of the alleged acceleration and distortion of your 'psycho-sexual development,' you will have 'long-term harm' in your 'ability to engage in and enjoy normal, healthy, intimate relationships.' "

Plaintiff responded: "Objection. This request is vague, ambiguous, unintelligible, an incomplete hypothetical, calls for expert testimony before experts have been designated, and calls for information protected by the work product doctrine. Plaintiff also has yet to obtain complete sets of her school and medical records. Without waiving these objections: The abuse by Defendant Torbet began when Plaintiff was very young, approximately 5 years old, an age at which children have little if any sexual awareness. Torbet's abuse accelerated and distorted the child's psycho-sexual development to such an extent there will undoubtedly be long-term harm to her ability to engage in and enjoy normal, healthy, intimate relationships. These are just some of the injuries caused by childhood sexual abuse. All of this will be confirmed by both retained and non-retained experts during expert discovery. Discovery and investigation are continuing."

Torbet argues that “[Plaintiff] failed to respond to the question, and instead answered a different question, presumably one [she] preferred.”

Plaintiff's boilerplate objections are all without merit and are overruled. However, the substance of Plaintiff's response directly addresses the interrogatory and is code compliant. That portion is: “The abuse by Defendant Torbet began when Plaintiff was very young, approximately 5 years old, an age at which children have little if any sexual awareness. Torbet's abuse accelerated and distorted the child's psycho-sexual development to such an extent there will undoubtedly be long-term harm to her ability to engage in and enjoy normal, healthy, intimate relationships. These are just some of the injuries caused by childhood sexual abuse.”

SI No. 11 requires: “To follow-up on your response to Form Interrogatory No. 6.2, under your verification dated: December 15, 2025, in regards to your contention that it is ‘undoubtable’ that because of the alleged acceleration and distortion of your ‘psycho-sexual development’, you will have ‘long-term harm’ in your ‘ability to engage in and enjoy normal, healthy, intimate relationships,’ state the specific harms from which you expect to suffer.”

Plaintiff's response is essentially the same as it is for SI No. 10. Again, the objections are without merit and are overruled. Again, the substantive portion of the response directly addresses the interrogatory and is code compliant. Plaintiff will not be ordered to provide a further response.

SI Nos. 14 and 15 - By way of opposition, Plaintiff's counsel declares that subsequent responses to SI Nos. 14 and 15 were served following the filing of the present motion. (Hale decl., ¶ 3.) Torbet argues that the responses remain deficient. The Court has reviewed the further responses and, besides the meritless objections that are overruled, they appear to be responsive and code compliant. Plaintiff will not be ordered to provide further responses.

SI No. 17 requires: “To follow-up on your response to Form Interrogatory No. 6.2, under your verification dated: December 15, 2025, identify, by date, injury inflicted, and medical treatment obtained, every incident of you cutting yourself with a razor.”

Plaintiff responded: “Objection. This request is compound and assumes facts. Plaintiff also has yet to obtain complete sets of her school and medical records. Without waving these objections: Plaintiff does not recall each and every time she cut herself, much less the dates she did so, and does not recall seeking any medical treatment for those injuries. Discovery and investigation are continuing.”

Torbet argues: “Mr. Hale failed to respond to the question, which is troubling because this implies that the response to the original question was a fabrication, since Mr. Hale appears incapable of providing any of the specific details which would ordinarily be expected to be available. If he has responsive information, he must supply it, even if that information is incomplete.”

Torbet fails to explain what he means or how the response is deficient. The response, whether Torbet likes it or not, essentially states that Plaintiff does not recall dates or other details. That does not make the response insufficient. The objections are overruled, but Plaintiff will not be ordered to provide a further response to SI No. 17.

SI Nos. 18, 19, and 20 are each substantially similar to SI No. 17 in that they ask Plaintiff to identify events, dates, and locations of alleged events. The responses are substantially similar to the response to SI No. 17. For the same reasons, Plaintiff's objections are overruled, but she will not be ordered to provide further responses.

SI No. 21 requires: “To follow-up on your so-called ‘further response’ to Form Interrogatory No. 14.1, under your verification dated: January 26, 2026, if you contend that Eric Torbet committed against you one or more violations of criminal statutes other than Penal Code §§ 647.6(a) and 288, identify each such violation, by stating the statute violated, the date of each such violation, the location of each such violation, and the facts constituting the violation.”

Plaintiff responded:

“Objection. This request is compound, calls for a legal conclusion, and is premature as discovery has just commenced. Plaintiff also has yet to obtain complete sets of her school and medical records. Without waiving these objections: Plaintiff does not recall the dates of each instance of abuse. When Plaintiff was approximately five years old her mother walked in to find Torbet lying on top of the little girl on the floor, stroking her hair and telling her she was beautiful.

By the time Plaintiff was in 2nd grade if not earlier, Defendant Parents allowed the man to go to Plaintiff's room and play dolls with the young girl with no supervision, often with the door closed. The sexual abuse began while Torbet was alone with Plaintiff in her room. Defendant Torbet groomed Plaintiff for abuse by giving her copious amounts of attention, telling her she was beautiful, playing with her, and behaving affectionately toward her in a way that made her feel uniquely adored. Torbet's grooming created an emotional dependency in Plaintiff on Torbet that he then exploited for his own sexual gratification.

Torbet's sexual abuse of Plaintiff continued when Plaintiff's family moved to a new, larger house in Goleta. Sometimes it occurred in the basement, and other times in Plaintiff's bedroom where Defendant Parents continued to allow Torbet to be alone with Plaintiff with the door closed.

Initially Torbet used the girl's dolls to exploit her sexually, simulating the dolls engaging in sex acts while describing such acts in detail to the young 3rd grader who had never heard such talk, and telling her it was a natural thing. As he normalized his abuse, he began to induce her to simulate the sexual acts with the dolls while he made moaning sounds, first with kissing, then digital penetration, then oral copulation and intercourse. He also induced physical contact with him, sometimes with his hand and her vagina by having her do yoga or dancing poses with him, or by giving her piggyback rides, or by having her sit on his lap and moving her back and forth across his genitals while he was sexually aroused and inducing her to kiss his cheek.

This type of behavior continued every time he came over, and at least once a week, until she began to lose interest in dolls around 5th grade, leading him to switch to imaginary sexual acts, referring to her by a different name, showing her how to do things such as put hickies on his arm, or playing games in which he would slide his hand up her thighs. Torbet also created something he called 'sex camp' so that Plaintiff and one of her friends would know how to please boys on whom they had crushes. Torbet then created a simulated boy out of a cardboard box and induced the young girls to simulate sex acts with it and to French kiss each other. He also induced them to simulate various sexual positions with the cardboard boy and each other, including the missionary position, and had them practice performing oral sex on a felt marker, while telling them to be sure to swallow. At other times he would tell her to pretend she was his student, and would spank her for purportedly getting in trouble.

Beginning around 3rd or 4th grade Defendant Parents also allowed Torbet to take Plaintiff to his apartment for hours at a time -- sometimes for entire afternoons into the evening -- where the sexual abuse would continue. They would sit together on his couch or his bed so that his body was touching hers, sometimes putting his arm around her. He would show her movies with sex scenes such as 'Titanic,' and he would talk about the characters having sex. He continued to talk about sex in very graphic terms, and occasionally told her he considered asking women out, only to then say 'but why would I when I have you?' It was rare for him to discuss something with her that was not of a sexual nature. He also sometimes gave the young girl drinks, and she sometimes fell asleep at his home and felt 'fuzzy' when she left.

There may have been other instances of abuse, but this is all Plaintiff has been able to recall to date. Discovery and investigation are continuing.”

By way of the previous supplemental response to FI 14.1, Plaintiff alleged that Torbet violated Penal Code sections 647.6, subdivision (a) and 288. SI No. 21 is straight forward. It asks Plaintiff if she contends that Torbet violated criminal statutes other than those two, that she identify the statutes, the dates of the violations, the locations of the violations, and the facts constituting the violations. Plaintiff failed to identify any other criminal statutes, making the remainder of the response evasive. The answer provides no information as to the basic question that is asked. As such, her meritless objections are

overruled, and she will be ordered to provide a straight-forward and code compliant response to SI No. 21.

SI No. 22 requires: "If you witnessed Eric Torbet commit a violation of any criminal statute against anyone other than you, identify all such violations, by stating the name, address, and telephone number of the victim of each such violation, the date of each such violation, the location of each such violation, and the facts constituting each such violation."

In response, Plaintiff states: "Objection. This request may violate the privacy rights of third parties, is compound, calls for a legal conclusion, and is premature as discovery has just commenced. Plaintiff also has yet to obtain complete sets of her school and medical records. Without waiving these objections: Plaintiff does not recall the dates of each instance of abuse."

Torbet created something he called 'sex camp' so that Plaintiff and one of her friends would know how to please boys on whom they had crushes. Torbet then created a simulated boy out of a cardboard box and induced the young girls to simulate sex acts with it and to French kiss each other. He also induced them to simulate various sexual positions with the cardboard boy and each other, including the missionary position, and had them practice performing oral sex on a felt marker, while telling them to be sure to swallow. Plaintiff has previously identified her friend in prior discovery responses.

There may have been other instances of abuse, but this is all Plaintiff has been able to recall to date. Discovery and investigation are continuing."

The response does not address what is asked. If Plaintiff contends that Torbet violated any criminal statute against others, which appears to be one of her contentions, she must identify all such violations in the manner requested. If Plaintiff does not know or recall this information, she must so state. The objections are overruled and Plaintiff will be ordered to provide a further response to SI No. 22.

SI No. 23 requires: "If you contend that you have repressed memory syndrome, which is also known in the professional psychology industry as 'dissociative amnesia,' describe the process, method, or procedure, you are using to recover your memories."

Following unmeritorious objections, which are overruled, and an unsolicited description of abuse, Plaintiff states that she "is not using any 'process, method, or procedure to recover' such memories." That portion of the response directly answers what is being asked. Plaintiff will not be ordered to provide a further response to SI No. 23.

SI No. 24 requires: "If you contend that you have repressed memory syndrome, which is also known in the professional psychology industry as 'dissociative amnesia,' identify, by name, address, and telephone number, every person who is assisting you in recovering your memories."

Following unmeritorious objections, which are overruled, and an unsolicited description of abuse, Plaintiff states that "[n]o one is assisting Plaintiff in recovering repressed memories." That portion of the response directly answers what is being asked. Plaintiff will not be ordered to provide a further response to SI No. 24.

SI No. 29 requires: "Identify, by date and location, every occasion on which Eric Torbet had his hand on your vagina."

Plaintiff responded: "Plaintiff does not recall the date of every occasion Torbet had his hand on her vagina, but believes they occurred at her house or his residence. There may have been other locations which she has been unable to recall. Torbet sometimes gave the young girl drinks, and she sometimes fell asleep at his home and felt 'fuzzy' when she left. Discovery and investigation are continuing."

By stating that she “does not recall the date of every occasion,” the implication is that Plaintiff does remember some of the occasions. If she does, she must provide a responsive answer to the SI. If she does not remember any of the occasions, she must so state. Plaintiff should also leave out the extraneous argument that is non-responsive to what is being asked. Plaintiff will be ordered to provide a further response.

SI No. 30 requires: “Identify, by date and location, every occasion on which Eric Torbet slid his hand up your thighs.”

The effect of Plaintiff’s response is the same as it is for SI No. 29, and Plaintiff will be ordered to provide a further response for the same reason.

Requests for Production of Documents

Code of Civil Procedure, section 2031.010 provides, in pertinent part:

“(a) Any party may obtain discovery . . . by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of the party on whom the demand is made.

“(b) A party may demand that any other party produce and permit the party making the demand, or someone acting on the demanding party’s behalf, to inspect and to copy a document that is in the possession, custody, or control of the party on whom the demand is made.”

“The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following:

“(1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling . . .

“(2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item, or

“(3) An objection to the particular demand for inspection, copying, testing, or sampling.” (Code Civ. Proc. § 2031.210, subd. (a).)

Code of Civil Procedure, section 2031.240, provides:

“(a) If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.

“(b) If the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall do both of the following:

“(1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.

“(2) Set forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated. If an objection is based on a claim that the information sought is protected work product under Chapter 4 (commencing with Section 2018.010), that claim shall be expressly asserted.

“(c)(1) If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.

“(2) It is the intent of the Legislature to codify the concept of a privilege log as that term is used in California case law. Nothing in this subdivision shall be construed to constitute a substantive change in case law.”

A motion to compel further responses to a demand for production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) “[U]nless there is a legitimate privilege issue or claim of attorney work product, [the] burden [of showing good cause for the request] is met simply by a fact-specific showing of relevance.” (*TBG Ins. Services Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448; see also Code Civ. Proc., § 2017.010.)

RFPD No. 21 requests: “Every WRITING, as that term is defined in Evidence Code § 250, which is a communication, in whole or in part, between you and Ann Marie Plane concerning, or having any relation to, the claims you are making in this case, including, but not limited to, your feelings about Edward Bookin and the psychological damages you have suffered from the misconduct of which you accuse Eric Torbet.”

Plaintiff’s initial response was: “Objection. This request is premature, vague, ambiguous, compound, overbroad, and calls for information protected by the litigation privilege, the right to privacy of Plaintiff and third parties, the attorney work product doctrine and/or the attorney client privilege, the common interest doctrine, and Evidence Code sections 912(d) and 952.”

Following the filing of the present motion, Plaintiff served a further response as follows: “Without waiving her objections, Plaintiff will produce all responsive documents in her possession, custody, and/or control.”

Because Plaintiff has represented that she will produce all responsive documents, she will be ordered to do so.

RFPD No. 22 requests: “Every WRITING, as that term is defined in Evidence Code § 250, which is a communication, in whole or in part, between Ann Marie Plane and the Nye, Stirling law firm, including, but not limited to, one Timothy C. Hale, concerning, or having any relation to, the claims you are making in this case.”

Plaintiff responded: “Objection. This request is premature, vague, ambiguous, compound, overbroad, and calls for information protected by the litigation privilege, the right to privacy of Plaintiff and third parties, the attorney work product doctrine, the attorney client privilege, the common interest doctrine, and Evidence Code sections 912(d) and 952.”

Torbet argues that there is no attorney client privilege between Plane and Plaintiff’s counsel. However, Torbet makes no attempt to show good cause justifying discovery of communications between Plaintiff’s guardian ad litem and Plaintiff’s attorney. Further, despite Torbet’s argument to the contrary, communications between the guardian ad litem and Plaintiff’s attorney are privileged pursuant to Evidence Code section 954, subdivision (b) and Evidence Code section 953, subdivision (b)(1). Plaintiff will not be ordered to provide a further response.

Attorney Hugo Torbet’s Continued Lack of Civility and Professionalism:

Torbet's attorney was previously admonished regarding his personal attacks against Plaintiff's attorney and was ordered to refrain from doing so. On December 17, 2025, the Court reminded attorney Hugo Torbet:

“ ‘ “Personal attacks on opposing counsel are improper and irrelevant to the issues.” ’ ” [Citations.]” (People v. Woodruff (2018) 5 Cal.5th 697, 764.)

Counsel shall not “make personally insulting or derogatory remarks directed at opposing counsel or impugn counsel's motives or character.” (Sacramento Area Flood Control Agency v. Dhaliwal (2015) 236 Cal.App.4th 1315, 1338-1339.)

“Personal attacks on the integrity of opposing counsel can constitute misconduct.” (People v. Winbush (2017) 2 Cal.5th 402, 484.)

“A lawyer must work to advance the lawful and legitimate interest of his or her client. This duty includes an obligation not to act abusively or discourteously. Zealous representation of the client's interest should be carried out in a professional manner.” (Santa Barbara County Local Rules, Appendix 5, ¶ A.1.)

Zealous advocacy does not equate to unprofessional remarks.

Rather than refrain from his personal attacks, they have gotten more vitriolic and are now being directed at both Plaintiff's attorney and Plaintiff. Civility is very important to this Court and calling Plaintiff things such as a “mentally incompetent person,” or an “uneducated nineteen year-old with mental defects,” is unacceptable. The Court considered issuing an order to show cause re: personally sanctioning Hugo Torbet or holding him in contempt of Court for intentionally violating the Court's order that he conduct himself in a professional and civil manner. The Court will give Hugo Torbet another opportunity to conduct himself as he should, but he should be aware that the Court will not continue tolerating such a lack of civility.

Judges

Judge Thomas Anderle

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